Board Policy 1.70.020-P

Policies and Administrative Directives

I. Roles and Responsibilities

A. It is the responsibility of the Portland Public School Board of Education (Board) to develop, evaluate, and adopt policies for the governance of the District.

B. It is the responsibility of the superintendent to initiate and direct the development of administrative directives, which implement board-adopted policy.

C. Policies and administrative directives are intended both as tools for District management and as sources of information for students, parents/guardians, staff, and other community members about how the District operates and the District's values.

D. The superintendent shall ensure that policies and administrative directives are available on the Portland Public School website as soon as practicable following their adoption and share them with staff and community as they are relevant.

II. Purpose of Board Policies

A Board policy represents a formal, written statement that creates a framework for:

A. Regulating Board or District business;

B. Establishing educational, operational, and other expectations for the District's staff and students;

C. Guiding the actions of those to whom the Board delegates authority and responsibility; and

D. Ensuring compliance with state and federal law.

III. Definitions

As used in the District policies and administrative directives:

A. Administrative Directive or Directive means a statement of actions adopted by the superintendent that implements Board policy.

B. Policy means a statement of general governing principles adopted by the Board.

IV. Policy Development

A. A proposal for a new policy or a change in existing policy may be made by:

i. A Board member;

ii. Superintendent;

iii. A District employee;

iv. A parent or guardian of a student;

v. A student;

vi. A District volunteer;

vii. A committee appointed by the Board of Superintendent; or

viii. A community member who is also a resident of the District.

B. When a proposal for a new policy or change in existing policy is received by the Board or Board committee(s) responsible for policy development, the Board committee may take the following action(s) or may request that the superintendent:

i. Collect additional information concerning the policy proposal, including a staff evaluation of options and recommended action;

ii. Appoint an advisory committee soliciting the views of persons representing the interests of those likely to be affected by the proposed policy or us other appropriate methods to obtain public views, especially from families and community members who have been and are underrepresented in district policymaking, to assist the Board in this policy development process;

iii. Seek appropriate legal and other advice as necessary to ensure that the policy proposal, if adopted, will be in compliance with applicable law; and/or,

iv. Take no further action on the policy proposal.

V. Policy Adoption

A. When a Board committee recommends a policy for adoption by the Board, the Board may elect to schedule the policy for a first and second reading at a regularly scheduled Board meeting, except as otherwise provided in this policy.

i. The first reading of a proposed policy shall include:

a. A summary of the content of the proposed policy or amendments;

b. Posting on the PPS website of the proposed language if new, or redlined version if a revision; and

c. A stated opportunity for the public to submit comments on the proposed policy, with a deadline date for submission of such comments.

ii. The second reading of a proposed policy shall not occur until there has been at least 21 (twenty-one) days allowed for public comment, following the first reading.

iii. If the language of the proposed policy has changed substantially, as

determined by the Board, since the first reading, the revised proposed policy shall be set for an additional first reading to allow for public input on the changes.

iv. At the time of the second reading the Board may take the following actions:

a. Approve the policy proposal as presented;

b. Modify the policy proposal and approve it as modified;

c. Schedule the policy proposal for an additional first reading;

d. Defer the policy proposal for further discussion or action; or

e. Reject the policy proposal.

B. Exceptions

i. Corrections or revisions that do not substantially change a policy may be adopted without a recommendation of a board committee; but such changes shall have a First and Second Reading.

ii. In the event of an emergency necessitating urgent action on a policy proposal, the Board may adopt the same at a lawfully called meeting of the Board. If the Board takes such action, the Board shall state and enter into the record the nature of the emergency and the basis for its determination that urgent action was necessary.

VI. Date Policies Become Effective

A new or revised policy shall become effective upon adoption of the Board, unless the Board otherwise specifies a different effective date in the policy.

VII. Review of Policies

A. The Superintendent of designed shall advise the Board when they believe an existing policy needs to be reviewed for potential repeal, revision, or replacement. Such necessity may occur when:

i. Practice is not in compliance with the policy and the practice differs to such an extent that a review of existing policy is warranted;

ii. A policy proposal revision is received by the superintendent;

iii. State or federal law has changed in such a manner as to require review or modification of existing policy; or

iv. A policy is not aligned with professional practices, district values or is ineffective.

B. The Board of Board committee shall strive to review all policies at least once every four (4) years, with at least one to two sections reviewed annually, in order to ensure

policies are current, relevant, in compliance with the law and are consistent with each other and the District-approved mission, vision, and goals. If needed, appropriate policy proposal revisions shall be submitted for consideration.

VIII. Policy Interpretation

Both "will" and "shall" are intended to express the Board's expectation than an action is going to or must occur. A change in usage from "shall" to "will" or vice versa is not intended to change the meaning.

IX. Administrative Directives

A. Administrative Directives are issued or modified by the Superintendent and do not need to be approved by the Board prior to their issuance.

B. Administrative Directives shall be consistent with Board policies.

C. The superintendent or designee shall notify Board members that a new or revised Administrative Directive has been issued. New Administrative Directives that impact staff or community should be shared with impacted parties when they are issued.

X. Administration in Absence of Policy or Administrative Directive

The Superintendent and other District staff members to whom administrative or supervisory authority has been delegated are authorized to use their professional judgment in the absence of a specific policy or administrative directive governing proper action to take, provided that such action shall not be in conflict with well recognized professional, educational, and ethical practices; the spirit and intent of existing District policy; the general values and objectives of the District; or any local, state, or national law.

Legal references: ORS 332.107
History: Adopted 6/1971; Amended 12/1983; 11/2021; __/2026.